

WHOLESALE ACCOMODATION AGREEMENT

This agreement is made between

Salinda Resort Phu Quoc Island
Cua Lap Hamlet, Duong To Commune
Phu Quoc Island, Kien Giang Province, Vietnam
Tel: (84-297) 399 0011 - Fax: (84-297) 399 9911
Email: sales-nta@salindaresort.com
Web: www.salindaresort.com

Công Ty TNHH Đầu Tư và Du Lịch 365
P108, G2, tập thể Thành Công, phường Thành Công,
quận Ba Đình, Hà Nội
Tel: (024) 3835 4899
Email: ashlie.anh@365travel.asia
Web: www.365travel.asia

The two parties hereby agree to sign this contract effective from **01 Nov 2018 – 31 Oct 2019** with the following terms and conditions as below:

Room Type	Winter Season 01 Nov – 22 Dec 2018 08 Jan – 31 Jan 2019 10 Feb – 31 Mar 2019 15 Apr – 30 Apr 2019	Peak Period 23 Dec 18– 07 Jan 19	Tet Holiday 01 Feb – 09 Feb 2019	Summer Season 01 Apr – 14 Apr 2019 01 May – 31 Oct 2019
	VND	VND	VND	VND
Deluxe Hill View	5,080,000	8,500,000	6,020,000	3,920,000
Deluxe Garden View	5,400,000	9,010,000	6,390,000	4,280,000
Deluxe Sea View	6,530,000	10,140,000	7,800,000	4,690,000
Premium Deluxe Sea View	7,350,000	11,050,000	8,770,000	5,200,000
Garden Villa	8,110,000	12,100,000	9,350,000	6,500,000
Sunset Villa	8,590,000	12,930,000	9,810,000	7,200,000
Suite Sea View Hotel	10,880,000	15,520,000	12,190,000	7,780,000
Suite Sunset Villa	14,390,000	20,730,000	15,790,000	11,200,000

* For Summer Season, a deduction of 10% on room rate will be applied for booking from Sunday to Thursday **EXCEPT the following:**

- **01 Apr – 14 Apr 2019**
- **01 Oct – 31 Oct 2019**
- **31 Aug – 01 Sep 2019 (Independence Day)**

RATES

- Rates quoted are per room per night, Net including Service charge and Government tax, and non-commissionable.
- The above rates are valid for all markets and applicable for FIT only (below 15 rooms).
- The above rates are room inclusive breakfast for up to two (2) persons per room per night.
- The resort policy permits maximum one (1) extra bed per room.
- Complimentary shuttle bus for airport transfer from and to Phu Quoc International Airport - Resort.
- Extra bed shall be charged at VND 1,175,000 per night, including benefits in room (breakfast).
- Extra bed shall not be applicable for Villas. Maximum occupancy for Villas is up to two (2) adults.
- Room rates are applicable on the Travel Agent's account only. Should the guest be paying on his own account, regular published rates will be applied.
- Wholesale rates quoted in this agreement are not applicable to group of fifteen (15) rooms or more. Group rates for MICE (Meeting, Incentive, Convention & Exhibition) are available upon request.

COMPULSORY DINNERS New Year Eve (31 Dec 2018) VND 4,940,000 per person (Price is inclusive of soft drink)
Children 6 – under 12 years old 50% adult rate (Price is inclusive of soft drink)

CHILDREN POLICY

- Under 6 years old: free of charge for accommodation and breakfast, sharing bed with parents.
- 6 - under 12 years old: free of charge for accommodation, sharing bed with parents, surcharge for breakfast VND 330,000 Net / night
- Sofa bed surcharge VND 660,000 Net / night including breakfast, upon availability.
- 12 years old and above: considering adult

The resort provides complimentary baby cots/cribs upon request.

OFFERS

- **EARLY BIRD**: 10% deduction on room rate for early bird bookings and full payment before 60 days of date of arrival.
No refund, no cancellation are acceptable. Early Bird is not combinable with Bonus Night.
- **BONUS NIGHT**: Stay 10 nights, pay 9 nights; Stay 12 nights, pay 10 nights. Bonus nights applied on last day of the stay.

Early bird and bonus nights are not applicable on Peak Period and are not applicable for children surcharge, extra bed and Gala Dinner.

LENGTH OF STAY RESTRICTION

Minimum 04 nights stay required for Peak Period (23 Dec 2018 – 07 Jan 2019).

Minimum 02 nights stay required for Tet Holiday and the period 31 Aug – 01 Sep 2019.

This agreement is made at Ho Chi Minh City on 06 Aug 2018, in 2 original copies.

For and on behalf of
Salinda Resort Phu Quoc Island

For and on behalf of
Công Ty TNHH Đầu Tư và Du Lịch 365

Nguyen Si Dieu Huong (Ms.)
Deputy Director

TERMS AND CONDITIONS

A. Check-In / Check-out

Check in time is from 14:00 hrs, and check out time is at or before 12: 00 noon.
Extension of check out time is subject to availability and will be charged as follows:
Check out until 18:00 hrs – 50% of agreement rate will be applied.
Check out after 18:00 hrs – 100% of agreement rate will be applied.

B. Reservations

All reservations must be in writing and send to the resort either by facsimile or e-mail with authorized signature(s). Telephone availability checks are not considered as a commitment for the reservation. The resort is not required to provide verbal confirmation of availability.

Reservation is subject to availability and confirmation from the resort and the rate is applicable upon receiving advance reservation. In case no prior reservation has been made, the published rates would be applied.

Room rates are applicable on your Travel Agent's account as per the officially authorized travel agent voucher. Should the guest pay by personal account, or extend their stay, regular published rates will be applied to protect the confidentiality of our agreement.

FOR RESERVATIONS:

Tel: +84 28 3929 3097 * Fax: +84 28 3929 3098
Email: sales-nta@salindaresort.com

C. Cancellation

C.1 Early Departure - Once check-in formalities have been completed, guests will be charge accommodation for the full duration of the reserved stay.

C.2 Total cancellation

The Travel Agent must notify the resort of cancellation and reduction in number of accommodations within the minimum period specified hereunder.

Summer Season	Between 21 - 15 days prior to guest's arrival: 50% of total room revenue will be charged. Within 14 days before guest's arrival, full charge will be applied.
Winter Season & Tet	Between 30 - 21 days prior to guest's arrival: 50% of total room revenue will be charged. Within 20 days before guest's arrival, full charge will be applied.
Peak Period	Between 60 - 30 days prior to guest's arrival: 50% of total room revenue will be charged. Within 29 days before guest's arrival, full charge will be applied.

C.3 No show / non-arrival

100% of total room night booked and confirmed will be charged.

D. Payment terms

If no credit arrangement has been approved in advance by the resort management, the Travel Agent agrees to settle the account due the resort prior to guests' arrival and subject to the deposit payment requirements above.

Unless otherwise stated in writing, all amounts mentioned in this Agreement are in VND. The resort reserves the right to claim compensation from the Travel Agent for any loss on exchange rates or bank charges arising from accounts settled by the Travel Agent in other foreign currency, and charge interest for late payment and delinquent account at the rate of two percent (2%) per month.

Should a holding pre-payment not be received by the due date, all rooms held will be released.

All payment shall be made directly to the resort bank account in Vietnamese Dong or US Dollar:

Bank Name	Vietcombank – Chi nhánh Nam Sài Gòn
Account Name	Công Ty TNHH An Cường
Account Number	VND Account: 0181 003 430 339 USD Account: 0181 373 430 340
Swift Code	BFTVVNVX018

E. Deposit

Summer Season	50% of total room revenue deposit should be settled 21 days prior to guest's arrival. The balance should be settled 14 days before guest's arrival.
Winter Season & Tet	50% of total room revenue deposit should be settled 30 days prior to guests arrival. The balance should be settled 14 days before guests check-in.
Peak period	50% of total room revenue non-refundable deposit should be settled 60 days prior to guests arrival. The balance should be settled 29 days before guests check-in

F. Vouchers

The Travel Agent shall issue to their customers vouchers corresponding to nights booked in the resort. These vouchers must strictly specify: the name of the Travel Agent, the number of guests, their names, the number of rooms, the guests' arrival date, their departure date, the number of nights booked, the name of the resort and the type of services covered.

Date

The rates set out in these terms and conditions are valid for thirty (30) days from the date of issue. To accept these rates, please ensure this acceptance notice is signed and returned to Salinda Resort Phu Quoc Island, Vietnam within this period. In case the resort does not receive your signed acceptance within thirty (30) days period, any bookings made utilizing these agreement rates may revert to published resort rates.

The Travel Agent shall submit to the resort, at the same time as the signed contract and for prior approval, a specimen voucher that can be used in the present framework. Vouchers must be presented at the resort reception desk by the customer upon arrival. Failure to do so will result in the customer being charged for the full amount of the resort service at the public rate posted in the resort and required to pay the full amount of this bill prior to departure.

G. Brochure

The Travel Agent will feature the resort in its tour program(s) and brochure(s) with the resort's precise standards, and include a photograph of the resort where appropriate. The resort will provide the Travel Agent with such pictures, descriptive text and resort logos to enable the Travel Agent to advertise market and sell accommodation of the resort. The Travel Agent must ensure that the information included by it or on its behalf in any brochure or marketing material is accurate and updated as many be appropriate from time to time and approved by the resort prior to publication.

H. Group policy

Group rates and MICE enquire of 15 rooms or more, separate conditions will apply to special cases according to individual group booking confirmation with negotiated rates and terms.

I. Undertakings and guest stays

The Travel Agent undertakes not to invite in any person whose behaviour may be prejudicial to the resort. The resort reserves the right to intervene if necessary. The Guests may not bring in any food or drink from outside. The Travel Agent undertakes to ensure that their guests comply with all the rules and regulations of the Resort (in particular the ban on smoking in public areas). Therefore the Travel Agent undertakes to remind their guests of the above provisions and to take responsibility for ensuring they comply with them.

J. Agreement rates on the internet

The agreement rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distributions or retailing via the Internet. Otherwise the rates stipulated have to be calculated based on at least a 25% mark-up to the existing agreed rates.

Travel Agents, without prior written approval from resort management, published rates will be applied.

K. Force Majeure

Each of the Parties shall comply with this agreement subject to the occurrence of a case of force majeure as defined by case law and described as an emergency beyond the control of the Parties and rendering the provision of distribution services or the occupation of resort rooms illegal or impossible.

In the event that the performance of this agreement is rendered impossible as a result of a case of force majeure, the fulfilment of the obligations of the Parties shall be suspended for the duration of the case of force majeure, without this giving rise to any compensation.

If the case of force majeure continues without interruption for a period of more than 6 months, the Parties shall enter discussions in good faith seeking to mitigate the effects of the delay or to agree on the steps to be taken, in a fair and reasonable manner.

L. Assignment – agreement between the parties

This agreement and any riders hereto are specific to the Travel Agent and the Travel Agent may not assign any of the rights and duties or any of the obligations conferred upon it by this agreement or any riders to any natural or legal person without the prior written authorisation of The Resort.

Nothing in this agreement shall create or shall be deemed to create a partnership or other employer/employee relationship between the Parties.

M. Governing law and jurisdiction

The law governing the agreement is the law of Vietnam. Any dispute, controversy or claim relation to the agreement shall be resolved by one or more arbitrators appointed in accordance with the Rules of Conciliation and Arbitration of the Vietnam International Arbitration of the Chamber of Commerce. The Arbitration shall take place in Ho Chi Minh City, Vietnam, and shall be held in Vietnamese.

N. Special remarks

This agreement supersedes any previous agreement rates of the resort and is valid upon acceptance of the above terms and conditions. In order for the resort to include your Travel Agent in its listing for preferential rates, please notify your acceptance of all Terms and Conditions of this agreement by signing the duplicate of it on all pages and by mailing it duly stamped to the resort.

Please note that scanned documents are considered as the original copies.

O. Termination

In the event of breach by either of the Parties to comply with any of the obligations under these presents, the other party will be entitled to terminate the agreement by sending a written notice (registered letter with acknowledgment of receipt) to the other and such breach is not remedied within 8 days of written notice to do so.